

**CHAPTER xlv.**

An Act to confer further powers upon the Yeadon Waterworks Company and for other purposes. A.D. 1916.

[10th August 1916.]

WHEREAS by the Yeadon Waterworks Act 1870 (hereinafter referred to as "the Act of 1870") the Yeadon Waterworks Company (hereinafter called "the Company") were incorporated and authorised to supply an area which now consists of the urban district of Yeadon and part of the urban district of Rawdon in the West Riding of the county of York and the undertaking lands waters waterworks and property of the Yeadon Waterworks Company Limited were vested in the Company:

And whereas by the Yeadon Waterworks Act 1889 (hereinafter referred to as "the Act of 1889") the Company were authorised to construct new waterworks and to supply water within the remainder of the urban district of Rawdon:

And whereas the demand for water within the Company's limits of supply has increased and is increasing:

And whereas by the Act of 1889 the Company were empowered subject as in that Act mentioned to divert impound and use the waters of the Black Beck and the Middle Beck and all other springs streams and waters which would or might be intercepted by the works shown on the plans deposited in connexion with that Act or which might be found in on or under any of the lands for the time being belonging to the Company but the Company were prohibited from taking under the powers of that Act the water flowing from any land situate to the eastward of the fence wall running from the Gaping Goose northward and forming the eastern boundary of Hawksworth Moor:

And whereas the waters which the Company were so authorised to take from the Black Beck and the Middle Beck constitute the main supply of water for the Company's statutory

A.D. 1916. limits and it is of great importance to the Company and their consumers that the waters within the drainage area of the said becks above the Company's aqueducts should not be diverted from such drainage area or prejudicially affected:

And whereas with a view to preventing such last-mentioned waters from being diverted or prejudicially affected and with a view to securing and preserving the quantity and purity of the waters which the Company were by the Act of 1889 authorised to divert impound and use and upon which the Company's consumers are dependent the Company have entered into the agreement set forth in Part I. of the First Schedule to this Act and it is expedient and urgent that such agreement be confirmed and the Company be empowered to carry the same into effect as by this Act provided:

And whereas in order to enable the Company to increase and improve their supplies of water so as to meet the increased and growing demands for water in their statutory limits it is expedient that the Company be empowered to construct additional works and to acquire additional lands easements and rights as by this Act authorised and that the said prohibition upon taking water flowing from any land situate to the eastward of the said fence wall be repealed:

And whereas the mains of the Company pass through the parish or township of Hawksworth in the rural district of Wharfedale and it is expedient that the Company be authorised to supply water within that parish in order to meet a demand for water therein:

And whereas the respective amounts which the Company were by the Act of 1870 and the Act of 1889 authorised to raise by the issue of shares or stock and by borrowing and the amounts which the Company have raised by the issue of stock and debentures are as follows:—

Act of	Share Capital.			Loan Capital.	
	Authorised.		Raised by Stock.	Authorised.	Raised by Debentures.
1870	£	s. d.	£	£	£
	Original -	5,991 9 0	5,991 9 0	1,500	1,500
"	Additional -	16,000 0 0	16,000 0 0	4,000	4,000
1889	"	28,000 0 0	26,000 0 0	7,000	6,410
			2,296 14 8 (premiums)		
Total	- -	£49,991 9 0	£50,288 3 8	£12,500	£11,910

And whereas the Company have expended on purposes to which capital is properly applicable the whole of the money raised by the issue of stock and debentures as above stated and in addition a sum of two thousand seven hundred pounds and upwards: A.D. 1916.

And whereas it is expedient that the creation and issue by the Company under the Act of 1889 of stock producing (together with the premiums) a sum exceeding twenty-eight thousand pounds as aforesaid be confirmed and that the Company be authorised to raise additional capital by the issue of shares and stock and by borrowing:

And whereas it is expedient that further powers be conferred upon the Company and further provision be made with reference to their undertaking as in this Act contained:

And whereas plans and sections showing the lines and levels of the works authorised by this Act such plans showing also the lands which may be taken compulsorily under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the West Riding of the county of York and are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1.—(1) This Act may be cited as the *Yeadon Waterworks Act* 1916. Short and collective titles.

(2) The Act of 1870 the Act of 1889 and this Act may be cited together as the *Yeadon Waterworks Acts* 1870 to 1916.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes of this Act and not inconsistent with the provisions of the Act of 1870 the Act Incorporation of Acts.

A.D. 1916. of 1889 and this Act are subject to the provisions of this Act
— hereby incorporated with this Act (namely):—

The Lands Clauses Acts;

The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of borrowed money into capital;

The Companies Clauses Act 1863 as amended by subsequent Acts except Part IV. (relating to change of name);

The Waterworks Clauses Acts 1847 and 1863:

Provided that section 44 of the Waterworks Clauses Act 1847 shall be read and have effect as if the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” were omitted therefrom and as if the words “in case the occupier shall make default in payment of such rent and the owner shall have required a supply of water to such house” were inserted in that section in lieu of the words “in his default.”

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The respective expressions “the Act of 1870” and “the Act of 1889” mean respectively the Yeadon Waterworks Act 1870 and the Yeadon Waterworks Act 1889;

The expression “the new waterworks” means the several works described in the section of this Act of which the marginal note is “Power to make new waterworks”;

The expression “the existing limits” means the limits within which the Company are by the Act of 1870 as extended by the Act of 1889 authorised to supply water;

The expression “the limits of supply” includes the existing limits and the parish of Hawksworth;

The expression “the Reva Reservoir” means the storage reservoir of the Company in the parish of Hawksworth constructed under the powers conferred by the Act of 1889;

The expression “Reva Road” means the public road leading from Eldwick to Menston past the Gaping Goose Farm.

WATERWORKS.

A.D. 1916.

4. Subject to the provisions of this Act the Company may make and maintain in the West Riding of the county of York and in the situations and according to the lines and levels shown on the deposited plans and sections the new waterworks hereinafter described (that is to say):—

Power to
make new
waterworks.

In the parish of Hawksworth—

- (1) An enlargement of the Reva Reservoir to be formed by means of an extension and enlargement of the existing dam of that reservoir:
- (2) A catchwater (No. 1) commencing in the stream or feeder which crosses under Reva Road at a distance of 415 yards or thereabouts westwards of Hillings Lane and terminating in the Reva Reservoir:
- (3) A catchwater (No. 2) in the inclosure numbered 79 on the Ordnance map scale $\frac{1}{2500}$ (edition of 1908) Yorkshire (West Riding) sheet CLXXXVI.-15 commencing in the stream or feeder which flows across that inclosure in a south-westerly direction towards the western corner of the Company's Reva Reservoir property and terminating by a junction with the existing conduit of the Company situate under the said inclosure and authorised by the Act of 1889 and therein described as Aqueduct No. 1:
- (4) A catchwater (No. 3) commencing in the stream or feeder which flows in a southerly direction near the fence wall running northwards from the Gaping Goose Farm and forming the eastern boundary of Hawksworth Moor and terminating by a junction with the said existing conduit of the Company:
- (5) A well (already partly sunk) and pumping-station on the lands of the Company adjoining and on the eastern side of the Reva Reservoir:
- (6) A rising main (consisting of one or more lines of pipes) commencing in the well and pumping-station by this Act authorised and terminating in the Reva Reservoir:

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In the urban district of Rawdon—

- (7) A service tank on Billing Hill near the eastern side of the inclosure numbered 111 on the Ordnance map scale $\frac{1}{2500}$ (edition of 1908) Yorkshire (West Riding) sheet CCII.-2:
- (8) A conduit (No. 1) (consisting of one or more lines of pipes) commencing by a junction with the Company's existing conduit in Canada Road Rawdon and terminating in the service tank on Billing Hill by this Act authorised:
- (9) A conduit (No. 2) (consisting of one or more lines of pipes) commencing in the service tank on Billing Hill by this Act authorised and terminating by a junction with the Company's said existing conduit in Canada Road aforesaid:

And for the purposes and as part of the pumping-station and rising main by this Act authorised the Company may use any works already constructed or made by them within the limits of deviation for such pumping-station and main as shown on the deposited plans and the expenditure of any capital already incurred for and in connexion with such works is hereby sanctioned and confirmed.

Additional
works.

5. In addition to the new waterworks the Company may upon any of the lands included within the respective limits of deviation for the new waterworks shown upon the deposited plans make and maintain all such channels grips watercourses waterways catchwaters tunnels adits headings drifts pipes conduits culverts drains sluices shafts wells bores water towers overflows waste-water channels bye-washes gauges filters tanks banks walls fences bridges embankments piers roads approaches engines pumps machinery and appliances as may be necessary or convenient in connexion with or subsidiary to the new waterworks or any of them or necessary or expedient for the purpose of augmenting or improving the supply of water.

Limits of
deviation.

6. In the construction of the new waterworks the Company may deviate to any extent within the limits of deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the enlargement of the Reva Reservoir and the service tank by this Act authorised five feet upwards and downwards and in the case of other works three

feet upwards and to any extent downwards Provided as follows A.D. 1916.
(that is to say):—

(A) The Company shall not construct the extension and enlargement by this Act authorised of the dam of the Reva Reservoir of a greater height above the general surface of the ground than that shown on the deposited sections and three feet in addition:

(B) No part of the conduits by this Act authorised shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

7. If the new waterworks are not completed within the period of seven years from the termination of the present war then on the expiration of that period the powers by this Act granted to the Company for executing the same or in relation thereto respectively shall cease except as to so much thereof as is then completed Provided always that subject to the restrictions and provisions of this Act the Company may at any time after the expiration of the said period lay down additional lines of pipes as part of the rising main and conduits (No. 1) and (No. 2) by this Act authorised and alter enlarge extend and renew the new waterworks or any of them as they may think expedient to provide for the requirements of their water supply.

Period for completion of new waterworks.

8.—(1) Subject to the provisions of this Act the Company may for the purposes of their water undertaking—

Power to take waters.

(A) Collect take divert convey impound use and appropriate the following streams in the parish of Hawksworth (that is to say):—

(1) The stream or feeder which crosses under Reva Road about 420 yards westwards of Hillings Lane and flows thence in a south-easterly and southerly direction;

(2) The stream or feeder which flows in an easterly direction from near Reva Side Farm along the southerly boundary of the inclosure numbered 131 on the Ordnance map scale $\frac{1}{2500}$ (edition of 1909) Yorkshire (West Riding) sheet CLXXXVI.-16;

(3) The stream or feeder (situate partly underground in pipes) which flows near the eastern side of Boulder Pits and along the north-eastern and

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eastern sides of the Company's Reva Reservoir property into the stream or goit known as the Jum Beck;

(4) The stream or feeder which flows in a south-westerly direction across the inclosure numbered 79 on the Ordnance map scale $\frac{1}{2500}$ (edition of 1908) Yorkshire (West Riding) sheet CLXXXVI.-15 towards the western corner of the Company's said Reva Reservoir property and thence into the Jum Beck; and

(5) The stream or feeder (situate partly underground in pipes) which flows southwards near the fence wall forming the eastern boundary of Hawksworth Moor and thence into the Black Beck;

and any other streams feeders springs and waters which will or may be taken or intercepted by the Catchwaters Nos. 1 2 and 3 or by the enlargement of the Reva Reservoir or any works in connexion therewith respectively by this Act authorised or which may be found in on or under any of the lands included within the limits of deviation for the said catchwaters and enlargement of reservoir as shown on the deposited plans; and

(B) Pump collect divert take and use all or any of the underground waters which will or may be taken or intercepted by the pumping-station by this Act authorised or any of the works constructed in connexion therewith under the powers of this Act.

(2) The proviso to section 8 (Power to take lands and waters) of the Act of 1889 is hereby repealed.

Limiting
powers of
Company to
abstract
water.

9. The Company shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament Provided that nothing in this section shall be deemed to prohibit the deepening or enlargement of any existing well or bore hole of the Company.

Compensa-
tion water.

10.—(1) From and after the date when the Company shall have commenced to take divert appropriate or use any waters

by means of the Catchwaters Nos. 1 2 and 3 and any works ancillary thereto by this Act authorised they shall in every day of twenty-four hours deliver from the Reva Reservoir into the goit mentioned in subsection (1) of section 10 of the Act of 1889 at a point in that goit situate not more than two hundred and twenty yards from the foot of the outer slope of the embankment of the said reservoir a quantity of not less than twenty-five thousand two hundred and fifty gallons of water in addition to the quantity of one hundred and forty-eight thousand seven hundred and fifty gallons of water mentioned in the said subsection making together a total quantity of one hundred and seventy-four thousand gallons of water in every day. A.D. 1916.

(2) The said delivery shall be as nearly as possible regular and continuous throughout each day and subsections (2) (3) (4) (6) and (7) of the said section 10 of the Act of 1889 shall as far as may be apply thereto.

(3) The provisions of this section shall be accepted and taken by all persons interested as full compensation for any waters which can be taken diverted appropriated or used by the Company under the powers of this Act.

11. The Company may enter upon take and use the lands in the parish of Hawksworth in the rural district of Wharfedale hereinafter mentioned (that is to say):— Power to acquire lands.

(1) For the purpose of the new waterworks such of the lands shown on the deposited plans and described in the deposited book of reference in connexion with the new waterworks as they may require:

(2) For the purpose of protecting from pollution fouling or contamination the waters which they are by this Act authorised to appropriate and use and for other purposes of their undertaking the following lands shown on the deposited plans (that is to say):—

(A) Lands situate on the north side of Reva Road containing by admeasurement 10 acres or thereabouts and comprising part of the inclosure numbered 52 on the Ordnance map scale $\frac{1}{2500}$ (edition of 1909) Yorkshire (West Riding) sheet CLXXXVI.-12 and the south-western corner of the inclosure numbered 61 on the said Ordnance map;

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(B) Lands and premises situate on the southern side of the said Reva Road between points situate respectively 205 yards or thereabouts measured along that road eastwards from the south-western corner of the Gaping Goose Farm and 405 yards or thereabouts westwards from Hillings Lane containing by admeasurement 50 acres or thereabouts and extending southwards from Reva Road for a distance of 430 yards or thereabouts.

Period for compulsory purchase of lands.

12. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Company may acquire easements only in certain cases.

13.—(1) The Company may in lieu of acquiring any lands for the purposes of the new waterworks where the same are intended to be constructed or placed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Company have acquired easements only under the provisions of this section the Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Company to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Persons under disability may grant easements &c.

14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or

privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. A.D. 1916.

15. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. As to private rights of way over lands taken compulsorily.

16. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant: Costs of arbitration.

Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to the costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Con-

A.D. 1916. — consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Confirmation
of scheduled
agreements
between
Charles
Ernest
Charles-
worth and
Company.

17.—(1) The agreements respectively dated the eleventh day of August one thousand nine hundred and fifteen and the third day of January one thousand nine hundred and sixteen and made between Charles Ernest Charlesworth (hereinafter in this section called “the owner”) of the one part and the Company of the other part as set forth in Part I. of the First Schedule to this Act (except as to the lands referred to in subsection (2) of this section) and in Part I. of the Second Schedule to this Act are hereby confirmed and made binding upon the parties thereto and in accordance with such agreements but subject to the terms and conditions thereof the Company may acquire from the owner all such rights and liberties vested in and exerciseable by the owner in respect of the lands referred to in such agreements and described in Parts II. of the said schedules as by such agreements the owner is required to sell and grant to the Company and the Company may in accordance with such agreements but subject to the terms thereof also purchase all the estate and interest of the owner of and in (A) the lands secondly described in Part II. of the First Schedule to this Act and (B) the lands described in Part II. of the Second Schedule to this Act.

(2) Provided that notwithstanding anything in the agreement set forth in the First Schedule to this Act or shown on the plan referred to in that agreement the Company shall not exercise any of the rights purported to be granted to them by the said agreement or of the powers conferred upon them by this Act in or upon the lands edged red on the plan signed in duplicate by the Most Honourable Frederick William Fane Marquess of Bristol the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (one of which plans has been deposited in the Office of the Clerk of the Parliaments House of Lords and the other in the Private Bill Office of the House of Commons).

Power to
purchase
additional
lands by
agreement.

18. In addition to any other lands and any easements rights or privileges over or in respect of lands which the Company are by the Act of 1870 the Act of 1889 and this Act authorised to acquire the Company may subject to the provisions of this Act purchase take on lease or otherwise acquire by agreement and hold for the purposes of their undertaking

(including the purpose of protecting their waterworks and water supplies against pollution fouling or contamination) any lands or any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) over or in respect of lands which the Company may deem necessary for their purposes Provided that the quantity of lands held by the Company in pursuance of this section shall not at any time exceed twenty acres and the Company shall not create or permit the creation or continuance of any nuisance on any lands purchased or taken on lease under this section nor erect any buildings thereon except offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their undertaking. A.D. 1916.

19.—(1) The Company may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Company shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their undertaking. Power to hold lands for protection of waterworks.

(2) The Company may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Company are empowered to take from being polluted and the Company may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

20. The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the aqueduct catchwaters and other works by the Act of 1889 and this Act authorised with reference to the execution by the Company or such owners lessees or occupiers of such works as may be necessary for the purpose of Power to agree as to drainage of lands.

A.D. 1916. draining such lands or any of them or for more effectually collecting and conveying and preserving the purity of the waters by the Act of 1889 and this Act authorised to be diverted collected and appropriated by the Company flowing to upon or from such lands directly or derivatively into such aqueduct catchwaters and other works.

Dwelling-houses for employees offices &c.

21. The Company may purchase or take on lease houses cottages and other buildings for persons in their employ and offices and other buildings for the purposes of their undertaking and may erect fit up maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Company may sell lease &c. lands.

22. The Company may sell lease exchange or otherwise dispose of to such persons and in such manner as the Company think fit any lands and property for the time being belonging to them which they may not require for the purposes of their undertaking (subject nevertheless to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable) and they may make any such sale lease exchange or disposal subject to such reservations conditions and restrictions as they think fit.

LIMITS OF SUPPLY.

Extension of limits of supply.

23. From and after the passing of this Act the limits within which the Company may supply water and exercise the powers conferred upon them by the Act of 1870 the Act of 1889 and this Act shall extend to and include the parish of Hawksworth in the rural district of Wharfedale in the West Riding of the county of York and within the said parish the Company shall have and may exercise all and the like powers privileges and authorities for and in relation to the supply of water and be subject to all and the like duties and obligations in respect thereof as they now have and are subject to within the existing limits.

If Company fail to supply local authority &c. may do so.

24.—(1) If at the expiration of five years from the passing of this Act the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act in any part of the parish of Hawksworth the rural district council of Wharfedale may provide a supply in that part of the said parish in accordance with the

provisions of the Public Health Act 1875 and any company or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in that part of the said parish as if this Act had not passed. A.D. 1916.

(2) If any differences should arise between the Company and any such council company or person as aforesaid as to whether the Company are furnishing or prepared on demand to furnish a sufficient supply of water in any part of the said parish such differences shall be settled by an arbitrator to be appointed on the application of either party by the Local Government Board.

FINANCIAL PROVISIONS.

25. The Company may from time to time raise additional capital not exceeding in the whole ten thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively. Provided that the Company shall not issue any share of less nominal value than ten pounds and it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of ten thousand pounds. Power to Company to raise additional capital.

26. The creation and issue by the Company of "B" stock to an amount of twenty-six thousand pounds producing with the premiums received on the sale thereof the sum of twenty-eight thousand two hundred and ninety-six pounds fourteen shillings and eightpence is hereby confirmed and all stock so created and issued shall be deemed to be as valid in all respects as if the said sum of twenty-eight thousand two hundred and ninety-six pounds fourteen shillings and eightpence were mentioned in section 21 (Company may raise additional capital) and in the proviso to section 22 (As to vesting of shares) of the Act of 1889 in lieu of the sum of twenty-eight thousand pounds and the Act of 1889 shall be read and have effect accordingly. Confirmation of capital issued under Act of 1889.

27.—(1) All shares or stock created under the powers of this Act shall be issued in accordance with the provisions of this section. New shares or stock to be sold by auction or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times

A.D. 1916. and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

- (A) Notice of the intended sale shall be given in writing to the respective clerks to the respective district councils of every urban or rural district within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:
- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be

allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively. A.D. 1916.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

28. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital.

New shares or stock to be subject to same incidents as other shares or stock.

29. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Restrictions as to votes in respect of preference capital.

30. The Company shall not in any one year make out of their profits any larger dividend on the additional share capital to be raised under the powers of this Act than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum.

Limit of dividend.

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Dividends on
different
classes of
shares or
stock to be
paid rate-
ably.

Power to
borrow.

31. In case in any year the net revenue of the Company applicable to dividend shall be insufficient to pay the full amount of the maximum dividend to which each class of ordinary shares or ordinary stock in the capital of the Company is entitled a proportionate diminution shall be made in the rate of dividend then to be paid in respect of each class.

32.—(1) The Company may at any time borrow on mortgage of their undertaking in respect of the capital issued under the Act of 1870 and the Act of 1889 any sum or sums not exceeding in the whole (inclusive of the sums already borrowed by them under the provisions of those Acts) the sum of sixteen thousand seven hundred and sixty pounds and all powers conferred upon the Company by the Act of 1870 and the Act of 1889 of borrowing money on mortgage of their undertaking so far as the same have not been exercised prior to the passing of this Act are hereby repealed.

(2) The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital which at the time of borrowing has been raised under the powers of this Act But no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

Borrowed
money not to
be converted
into capital.

33. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the conversion of the borrowed money into capital shall cease to apply to the Company.

Appoint-
ment of
receiver.

34. Section 33 (For appointment of a receiver) of the Act of 1889 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act.

The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

35. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 34 of the Act of 1889. A.D. 1916.
Power to
create debenture stock.

36. All money raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and all the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company. Priority of mortgages and debenture stock over other debts.

37. The principal moneys secured by all debentures granted by the Company in pursuance of the powers of the Act of 1870 or the Act of 1889 and subsisting at the passing of this Act shall during the continuance of such debentures have priority over the principal moneys secured by any mortgages or debentures granted after the passing of this Act. Priority of principal moneys secured by existing debentures.

38.—(1) If the Company desire to raise by the issue of preference shares or stock any capital which they are by this Act authorised to raise or to issue any debenture stock under the powers of this Act they may create and issue such preference shares or stock or debenture stock so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed by a special meeting convened for the purpose. Issue of redeemable preference capital and debenture stock.

(2) If it is so provided in the resolution the Company may—

(A) Call in and pay off the shares or stock or any part thereof at any time before the fixed date of redemption; and

(B) Redeem the shares or stock or any part thereof either by paying off the shares or stock or by issuing to any shareholder or stockholder subject to his consent other shares or stock in substitution therefor

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and may for the purpose of providing money for paying off the shares or stock or of providing substituted shares or stock create and issue new shares or stock (either redeemable or irredeemable) or re-issue shares or stock originally created and issued under this section. Provided that the creation and issue of any preference capital under this section does not make the total nominal amount of preference and ordinary capital issued under this Act exceed the amount of such capital which the Company are by this Act authorised to issue. And provided also that the creation and issue of debenture stock under this section is not in excess of the amount of debenture stock which the Company are for the time being authorised to create and issue under the powers of this Act.

(3) The Company may set aside out of revenue after providing for the payment of interest on any mortgages or debenture stock or preference capital of the Company and for other fixed charges and obligations such sums as they may consider proper for the purpose of forming a fund for the redemption at maturity of any redeemable preference capital or debenture stock which under the conditions of the creation and issue of that capital or stock is to be redeemed wholly or partly in cash and the Company may invest any sums so set apart and the income therefrom in any securities in which trustees are for the time being by law authorised to invest trust funds or in any other securities (not being securities of the Company except as hereinafter provided) in which they may be authorised to invest those sums by a resolution passed at a general meeting of the Company.

Any sums so set apart shall be applied for the redemption at maturity of any redeemable preference capital or debenture stock for the redemption of which they have been set apart but may if the directors think fit be also at any time applied in the purchase of any such capital or stock at a price not exceeding the redemption price and any capital or stock so purchased shall be cancelled.

Receipt in
case of per-
sons not sui
juris.

39. If any money is payable to any shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

40. The Company shall not under the powers of this Act raise or borrow any money (except for the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act") during the present war and within twelve months thereafter unless the consent of the Treasury has been previously obtained.

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Consent of Treasury to raising of money.

41.—(1) All moneys raised under this Act, including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Application of money.

(2) The Company may apply to any of the purposes of this Act to which capital is properly applicable any moneys which they have raised or are authorised to raise under the Act of 1889 Provided that the powers conferred by this subsection shall not be exercised by the Company during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

ADMINISTRATIVE PROVISIONS.

42. Notwithstanding anything in section 66 of the Companies Clauses Consolidation Act 1845 the Company may by a resolution of a general meeting at any time determine that the future ordinary meetings of the Company shall be held once only in each year in such month as may be prescribed by such resolution and the Company may from time to time in like manner alter or rescind any such resolution.

Meetings of Company.

43. If and so long as the Company shall have determined that the ordinary meetings of the Company shall be held once only in each year it shall be lawful for the directors to declare and pay in any year an interim half-yearly dividend out of the profits of the Company without the sanction or direction of a general meeting but no such half-yearly dividend on any class of shares or stock shall exceed one half of the amount of the prescribed rate applicable to that class.

Interim dividends.

44.—(1) The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may close the register of transfers of debenture stock for a period not exceeding fourteen

Closing of transfer books previous to declaring dividend or paying interest.

A.D. 1916. days previous to each date at which the interest thereon shall be payable and in the case of either such register they may fix a day for closing the same of which seven days' notice shall be given either by circular to each proprietor or by advertisement in a newspaper published or circulated in the limits of supply.

(2) Any transfer of stock or debenture stock made during the time when the register of transfers or the register of transfers of debenture stock as the case may be is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

Determination of remuneration of secretary and auditors.

45. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and auditors.

Notice of candidature for office of director.

46. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at a general meeting a director of the Company unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the office of the Company ten days at least before the day of election.

Appointment of proxies.

47. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder of the Company duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder and for that purpose may execute on behalf of the shareholder the necessary form of proxy Provided that the instrument appointing the attorney shall be transmitted to the secretary at the same time as the instrument appointing the proxy.

Joint holders.

48. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares in the capital of the Company any one of those persons may vote at any meeting (at which holders of shares of the same class are entitled to vote) either personally or by proxy in respect of the shares as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands

first on the register in respect of the shares shall alone be A.D. 1916.
entitled to vote in respect thereof.

49.—(1) The directors may if they think fit grant to any employee of the Company a pension not exceeding two thirds of the average annual salary or wages paid to such employee during the last six years of his term of service with the Company. Power to grant pensions &c.

(2) In the event of any such employee being killed in action or dying of wounds injuries or disease received or contracted whilst serving with any of His Majesty's forces in war the directors may where adequate provision is not otherwise made grant such gratuities pensions or allowances or may make such other payment as they may think fit to the widow or family or any dependent of such employee.

(3) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee widow family or dependent as aforesaid such pensions allowances gratuities or payments as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply the funds and revenues of the Company.

(4) In this section the word "employee" includes any officer or servant.

50. The directors may subscribe or make donations to any fund raised in any case of national emergency or to infirmaries and hospitals and convalescent homes and other institutions and objects or to any exhibitions or to the benevolent and sick funds of the officers servants and employees of the Company and may for any of those purposes apply the funds and revenues of the Company Provided that the total amount to be so applied shall not in any one year exceed the sum of twenty pounds. Power to directors to make donations subscriptions &c.

MISCELLANEOUS.

51. The following sections and portions of sections of the Act of 1870 and the Act of 1889 are hereby repealed (that is to say):— Repeal of portions of Acts of 1870 and 1889.

Act of 1870—

Section 45 The whole section;

Section 51 The words "be constantly laid on under pressure or" and the word "existing";

A.D. 1916.

Section 53 The words from "and for every private bath" to the end of the section;

Section 54 The whole section;

Section 55 The whole section;

Section 61 The proviso;

Section 64 The whole section:

Act of 1889—

Section 4 The first proviso.

As to exercise of powers of section 12 of Waterworks Clauses Act 1847.

52. The Company may on all or any of the lands for the time being held by them execute for the purposes of or in connexion with their undertaking any of the works mentioned in section 12 of the Waterworks Clauses Act 1847 (other than wells and works for taking and intercepting water) Provided that the Company shall not under the powers of this section create or permit the creation or continuance of any nuisance on any such lands.

Application of Waterworks Clauses Act 1847 to pipes telephones &c.

53.—(1) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Company may and which they are hereby authorised to lay down or erect for the purposes of their undertaking.

(2) No telephone or telegraph posts wires conductors or other apparatus erected laid down made or maintained under the authority of this section shall be used for transmitting telegrams which are within the exclusive privilege conferred on the Postmaster-General by the Telegraph Act 1869.

As to communication pipes.

54.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Company may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the limits of supply execute such works on behalf of such owner or occupier and any expenses incurred by

the Company shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt. A.D. 1916.

55. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation in the Act of 1870 the Act of 1889 and this Act. Power to lay pipes in private streets.

56. Subject to the provisions of the Waterworks Clauses Act 1847 the Company may for the purpose of preventing and detecting waste affix and maintain meters and other apparatus on the service pipes and mains of the Company and stop-cocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose temporarily break up and interfere with public and private streets roads lanes footways courts passages tramways sewers pipes wires and apparatus : Detection of waste.

Provided that the Company shall not break up or interfere with any wires or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

57.—(1) For the purpose of executing constructing laying down enlarging extending repairing cleansing emptying or examining any reservoir well adit aqueduct line of pipes or other work of the Company the Company may cause the water in any such work to be discharged into any available stream or watercourse Provided that in the discharge of such water no injury shall be caused to any fish or spawn or spawning beds. Discharge of water into streams.

(2) In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

58. The Company may require that any dwelling-house erected after the passing of this Act and situate on land at a higher level than forty feet below the service tank from which Cisterns to be provided for high-level supplies.

A.D. 1916. — a supply of water is furnished by them to such dwelling-house shall be provided with a cistern or cisterns capable of containing a total quantity of water sufficient to provide an adequate supply for such dwelling-house for a period of forty-eight hours and the Company shall not be required to supply any such dwelling-house until the same is provided with a cistern in conformity with the requirements of this section.

Byelaws for preventing waste &c. of water.

59.—(1) The Company may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as “water fittings”) to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Company are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) All such byelaws shall be subject to the provisions contained in sections 182 183 184 and 186 of the Public Health Act 1875 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the Company were a local authority within the meaning of those sections and the secretary of the Company were the clerk of the local authority.

(4) A copy of all such byelaws in force for the time being shall be kept at the office of the Company All persons may at all reasonable times inspect such copy without payment and the Company shall cause to be delivered a printed copy of all byelaws for the time being in force to every person applying for the same on payment of a sum not exceeding sixpence for each copy.

(5) In case of failure of any person to observe such byelaws as are for the time being in force the Company may if they think fit after twenty-four hours’ notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement

or alteration shall be recoverable by the Company in the same manner as the water rates in respect of the premises are recoverable. A.D. 1916.

(6) Section 57 of the Act of 1870 is hereby repealed Provided that all regulations made by the Company under the said section 57 and in force at the passing of this Act shall continue in force and have full effect until the date of the coming into operation of the first byelaws made under this section or the date of the expiration of one year after the passing of this Act whichever date shall be the earlier and shall then cease to be in force.

60. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. Rates payable by owners of small houses.

61. In addition to the rates for the supply of water for domestic purposes which the Company are by the Act of 1889 authorised to charge they may charge in respect of every bath capable of containing when filled for use not more than fifty gallons a sum not exceeding in the case of any house or part of a house of which the gross estimated rental is less than twenty pounds the sum of eight shillings per annum and in all other cases the sum of ten shillings per annum and for every bath capable of containing when filled for use more than fifty gallons such sum as the Company may think fit The said sums shall be paid quarterly in advance and be recoverable in all respects with and as the water rate. Charges for baths.

62. The Company may supply water for other than domestic purposes on such terms and conditions as the Company think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such Supply by measure.

A.D. 1916. supply would interfere with the sufficiency of the supply of water for domestic purposes.

Price for supply by measure.

63. The price to be charged for a supply of water by measure shall not exceed one shilling and sixpence per one thousand gallons.

Supply to houses partly used for trade &c.

64. The Company shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Supply for farming purposes.

65. Where water supplied by the Company to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Company to refuse a supply of water for domestic purposes at the rates authorised by the Act of 1889.

Supply of water by hose pipe for washing carriages &c.

66. When water supplied for domestic purposes is used for washing carriages or motor cars or for other purposes in premises where carriages or motor cars are kept the Company may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

Company not bound to supply several houses by one pipe.

67. The Company shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water Provided that this section shall not apply to any house to which a supply of water by the Company has been laid on before the commencement of this Act.

Notice to Company of connecting or disconnecting meters.

68. Before any person connects or disconnects any meter by means of which any of the water of the Company is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Company of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Company and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

69. Any meters pipes taps valves cocks ferrules cisterns baths soil-pans waterclosets apparatus receptacles and other articles (all of which are in this section included in the expression "fittings") let for hire under the provisions of the Act of 1870 and the Acts incorporated therewith shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

A.D. 1916.

Fittings not to be subject to distress.

70. Any notice to be served by the Company on a person supplied with water shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or in print or by a stamp or if it be a notice to pay any charge in respect of a supply of water by the name either of the secretary or of such other officer as aforesaid being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Authentification and service of notices by Company.

71. Where the payment of more than one sum by any person is due under this Act or any other Act relating to the Company any summons or warrant issued for the purposes of such Acts or any of them in respect of that person may contain in the body thereof all the sums payable by him.

Contents of summons &c.

72. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty

Recovery of penalties &c.

A.D. 1916. shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands.

73. Proceedings for the recovery of any demand made under the authority of this Act or the Act of 1870 or the Act of 1889 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

PROTECTIVE PROVISIONS.

For prevention of plumbism.

74.—(1) All water supplied by the Company under the Acts of 1870 and 1889 and this Act whether in bulk or otherwise and used for dietetic purposes shall before delivery be efficiently and continuously filtered through such material or chemically treated in such manner as to prevent the water acting on lead or on any material used for the construction of pipes cisterns or other receptacles into the manufacture of which lead enters in a manner injurious or liable to prove injurious to public health.

(2) The Company shall forthwith construct and thenceforward maintain the apparatus and appliances necessary to prevent such action.

(3) If the Company shall fail to construct such apparatus or appliances or apply such filtration or chemical treatment as shall efficiently prevent such action or shall fail thenceforward efficiently to maintain the same or shall at any time supply water in such a condition as to be capable of such action they shall be liable to a penalty not exceeding ten pounds for every day on or on any part of which any infringement of this section shall occur unless such infringement be due to unavoidable cause or accident and such penalty shall be recoverable summarily at the instance of the county council of the West Riding of Yorkshire (hereinafter referred to as "the county council") or of the district council of any district within the limits of supply.

(4) For the better enforcement of the provisions of this section any person duly authorised in writing by the county council or the Yeadon or Rawdon Urban District Council may at any reasonable time enter on the property of the Company for the purpose of inspecting the apparatus and appliances and materials used under the provisions of this section for filtering

or treating the water as the case may be and may take samples of the water in duplicate and shall thereupon before he carries away the same from the property of the Company seal up and mark such samples and shall leave one of such samples with the person (if any) in charge of the property and any person who molests hinders or obstructs any such person in the performance of his duty under this section shall be liable to a penalty not exceeding five pounds for every such offence. A.D. 1916.

(5) The county council and the Yeadon and Rawdon Urban District Councils may jointly from time to time on the written application of the Company suspend for such period as they think fit the operation of subsections (1) to (3) of this section if they are satisfied on the reports of the medical officers of health of the said riding and of the urban districts of Yeadon and Rawdon that owing to any change in the character of the water supplied by the Company and used for dietetic purposes such filtration or chemical treatment is unnecessary for the purpose of subsection (1) hereof.

75. All water supplied by the Company shall if necessary be filtered so as to render the same pure and wholesome and otherwise fit for domestic purposes. If any difference shall arise between the Yeadon or Rawdon Urban District Council and the Company as to the necessity or otherwise of such filtration such difference shall be determined upon the application of either party by the Local Government Board. Filtration of water for domestic purposes.

76. For the protection of the West Riding of Yorkshire Rivers Board the following provisions shall apply and have effect (that is to say):— For protection of West Riding of Yorkshire Rivers Board.

(1) Any water discharged by the Company in exercise of the powers of the section of this Act of which the marginal note is "Discharge of water into streams" shall be as free as may be reasonably practicable from mud or solid or offensive matter:

(2) The gauges and other instruments referred to in subsection (2) of section 10 (As to compensation water) of the Act of 1889 for measuring and recording the daily quantity of water delivered from the Reva Reservoir into the stream or goit which leads from the Black Beck (otherwise 'Hawksworth Beck') to the new dam and known as the Jum Beck shall at all reasonable times be open to the inspection of the

A.D. 1916.

West Riding of Yorkshire Rivers Board or any person appointed by them in writing under the hand of their clerk for the purpose of ascertaining that the Company are complying with the requirements of subsection (1) of section 10 of the Act of 1889 and of subsection (1) of the section of this Act of which the marginal note is "Compensation water" with respect to the discharge of compensation water.

For protection of Midland Railway Company.

77. Any mains or pipes which under the powers of the section of this Act whereof the marginal note is "Power to lay pipes in private streets" the Company may lay down under or over any railway works or roadway belonging to the Midland Railway Company shall be laid down and executed and subsequently maintained by the Company under the direction and superintendence and to the reasonable satisfaction of the principal engineer of the Midland Railway Company and in accordance with plans and sections to be previously submitted to and approved by him.

Any dispute or difference which may arise between the said principal engineer and the Company under the provisions of this section shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of West Riding Asylums Board.

78. For the protection of the West Riding of Yorkshire Asylums Board and of the Committee of Visitors of the West Riding Pauper Lunatic Asylum at Menston the following provisions shall have effect unless otherwise agreed in writing between the said board and the Company (that is to say):—

(1) In this section—

The expression "the board" means the said asylums board and the said committee of visitors or either of them as the case may require;

The expression "the existing well" means the well from which the board now derive their water supply and includes any extension thereof whether by deepening or otherwise;

The expression "day" means a day of twenty-four hours reckoned from midnight to midnight;

- (2) Within a period of six months after the date when the restriction upon the raising or borrowing of money imposed by the section of this Act of which the marginal note is "Consent of Treasury to raising of money" ceases to be operative the Company shall commence and thereafter (unless and until otherwise agreed between the board and the Company and subject as hereinafter provided) continue to supply to the board and the board shall take and pay for fifteen thousand gallons of water per day. If at any time after the date of the installation by the Company under the powers of this Act of a pumping apparatus (other than a temporary pumping apparatus for testing purposes) near to or for the purpose of supplying the Reva Reservoir or the thirtieth day of September one thousand nine hundred and twenty-three (whichever of those dates shall be the earlier) the board shall by writing request the Company to give a further supply of water to the board the Company shall forthwith upon such request commence and thereafter (so long as required by the board) continue to supply to the board and the board shall take and pay for such further quantity of water as the board may from time to time require not exceeding an additional fifteen thousand gallons per day:

Provided that the board shall not be obliged under this subsection to take or continue to take and pay for—

(a) any water if and so long as the Company are supplying to them not less than fifteen thousand gallons pursuant to subsection (3) (A) of this section; or

(b) any greater quantity of water than that by which any quantity for the time being supplied pursuant to the said subsection (3) (A) is less than fifteen thousand gallons per day:

- (3)—(A) If at any time after the Company shall have installed a pumping apparatus (other than a temporary pumping apparatus for testing purposes) as aforesaid the supply of water obtainable from the existing well shall be in any wise diminished the Company shall

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(subject as hereinafter provided) on the request in writing of the board forthwith commence and (so long as required by the board) continue to supply to the board such quantity of water per day as the board may demand but not exceeding the quantity which in the opinion of the board will be equivalent to the amount of the diminution of the supply or the quantity of seventy-five thousand gallons in any day whichever shall be the less :

- (B) The board shall pay to the Company for water supplied to the board under this subsection up to the extent of fifteen thousand gallons per day whether such diminution has been caused by the pumping of the Company or not but all water supplied under this subsection in excess of the said amount shall be supplied free of charge except as mentioned in paragraph (D) of this subsection :
- (c) If and so long as the Company are supplying any water to the board free of charge pursuant to this subsection the board shall at the expiration of six months from the commencement of such free supply and at the expiration of each subsequent period of six months during the continuance of such free supply pay to the Company such a sum as shall be a fair equivalent to the amount by which the delivery of the water so supplied during the period of six months next preceding the date of such payment reduced the cost to the board of pumping at the existing well during that period :
- (D) If after the Company have commenced to furnish a supply to the board under the provisions of this subsection the Company shall agree with the board or failing agreement satisfy an arbitrator that the diminution or a part thereof has not been caused by the operations of the Company the Company shall nevertheless (if so required by the board) continue the supply but the board shall pay for the water which shall have been or shall be supplied by the Company pursuant to this subsection or for that part of the water so supplied or to be supplied which may be agreed or determined by an arbitrator to be in excess of the diminution caused in the board's supply

by the operations of the Company (as the case may be) so far as such payment is not otherwise provided for by this section. Provided that if the arbitrator shall determine that the Company have unduly delayed the commencement and prosecution of any proceedings for showing that the diminution has not been caused by the operations of the Company the board shall not be required to pay for any water supplied under this subsection more than one year prior to the commencement of such proceedings and in any event the board shall not be required to pay for any water supplied under this subsection more than four years prior to the commencement of such proceedings:

- (E) If in the opinion of the board the water supply from the existing well shall have been diminished by the pumping of water by the Company the Company shall forthwith on the request in writing of the board cease pumping until they have commenced to furnish a supply in accordance with the provisions of this subsection:
- (F) The supply of water from the existing well shall be deemed to have been diminished if less than ninety-three thousand gallons per day shall be obtained by pumping nine and a half hours consecutively on each of ten consecutive days with a pump of the capacity of the existing pump of the board:
- (G) If it is shown that an adequate supply of water can be obtained by the board by reasonable additional pumping the board shall on the request in writing of the Company have resort to such pumping before requiring the Company to deliver water as aforesaid and the Company shall pay to the board the cost (including extra wear and tear) entailed by the additional pumping. Provided that the board shall not be required by the Company to deepen the existing well:
- (H) If the Company shall cease pumping then after the expiration of twelve calendar months from the date of the ceasing of the pumping the liability of the Company to furnish a supply of water pursuant to

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this subsection shall be suspended until such time as pumping shall be resumed by the Company :

- (4) The right to a supply pursuant to subsection (3) (A) shall be in addition to and without prejudice to the rights of the board under subsection (2) and the maximum quantity of water that the Company can be called upon to supply pursuant to the provisions of this section shall be one hundred and five thousand gallons a day :
- (5) The price to be paid by the board for all water supplied to them under this section and for which they shall be liable to pay under the provisions of this section shall be a sum calculated at the lowest net rate (after deducting any discount or rebate) charged by the Company for water supplied by meter for trade purposes less one penny per one thousand gallons :
- (6) All water to be supplied by the Company to the board shall be taken direct from the Reva Reservoir or from the filter beds adjacent thereto as may be prescribed by the board by a pipe six inches in diameter with an increased diameter if and where necessary to maintain an even flow of water where the gradient is flatter Such pipe shall be laid by the Company and shall follow generally the line indicated on the map marked "Map A" signed by Henry Arthur Johnson on behalf of the Company and William Vibart Dixon on behalf of the board and shall be carried to the point marked "B" on the said map On completion of the laying of the said pipe so as to be ready for use the board shall pay to the Company the sum of five hundred pounds towards the cost thereof and if the board shall at any time desire to have a supply from the filter beds the board shall also pay the cost of a branch pipe from the last-mentioned pipe to the filter beds The said pipe or pipes shall not be used for the purpose of supplying water otherwise than to the board so as to affect prejudicially the rights of the board to a supply of water under the provisions of this section or so as to reduce materially the hydraulic head of pressure :

(7) If owing to any default on the part of the Company in carrying out the terms of this section it becomes necessary for the board to obtain a supply of water from some other body or person the Company shall repay to the board the amount of any cost incurred by the board in consequence of such default: A.D. 1916.

(8) For the purpose of enabling the Company to comply with the provisions of this section the board shall so far as they can without expense to themselves and so far as reasonably practicable grant all such easements and provide all such facilities to the Company as shall be necessary:

(9) The board shall afford to the officers servants or other representatives of the Company at all reasonable times access to the existing well for the purpose of ascertaining particulars thereof and the level of the water therein and the Company in respect of their works shall afford like facilities to the board and their officers servants and representatives:

(10) Nothing in this Act shall take away or lessen any rights of the board to obtain a supply of water from any source that may be available:

(11) If there shall be any diminution in the existing well which shall in the opinion of the Company be caused by the wrongful act of some third party the board shall if required to do so by the Company and at the expense of the Company take legal proceedings against such third party to compel a discontinuance of such wrongful act and to prevent the water in the said well from being unlawfully diminished:

(12) Any difference arising between the board and the Company under this section shall be referred to and settled by an arbitrator to be agreed on between the board and the Company or in default of agreement to be appointed by the President of the Institution of Civil Engineers on the application of either of the parties in difference and the Arbitration Act 1889 shall apply to the reference.

79. The local authority of the district within which any street not repairable by the inhabitants at large is situate shall As to private streets.

A.D. 1916. be deemed in addition to any other persons to be persons having the control or management of such street for the purposes of the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as the same relate to the situation and depth in and at which the pipes shall be laid.

COSTS OF ACT.

Costs of Act. 80. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing Act.

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FIRST SCHEDULE.

PART I.

AN AGREEMENT made the eleventh day of August one thousand nine hundred and fifteen between CHARLES ERNEST CHARLESWORTH of Conyngham Hall Knaresborough in the West Riding of the county of York Esquire (hereinafter called "the grantor") of the one part and the YEADON WATERWORKS COMPANY (hereinafter called "the Company") of the other part.

WHEREAS by the Yeadon Waterworks Act 1870 the Company were incorporated and were authorised to supply with water the township of Yeadon in the said West Riding:

And whereas by the Yeadon Waterworks Act 1889 the Company were authorised to construct upon certain lands in the township of Hawksworth in the parishes of Otley and Guiseley shown on the deposited plans referred to in the said Act the works described in that Act consisting of a storage reservoir and aqueducts conduits or lines of pipes and to divert collect impound take appropriate and use for the purposes of the Company the waters of the Black Beck and the Middle Beck and all other springs streams and waters which would or might be intercepted by the said works or which might be found in on or under any of the lands for the time being of the Company but it was provided that the Company should not under the powers of that Act take the water flowing from any land situate to the eastward of the fence wall running from the Gaping Goose northward and then forming the eastern boundary of Hawksworth Moor:

And whereas the Company duly acquired the lands and constructed the storage reservoir aqueducts conduits and lines of pipes which they were authorised to acquire and construct by the Act of 1889 and they are now diverting collecting impounding and appropriating the waters of the Black Beck and Middle Beck by means of the said works:

And whereas the grantor is seised in fee simple in possession free from incumbrances of a piece or parcel of land part of which is known as Hawksworth Moor situate in the parish of Hawksworth and part of which is known as Burley Moor and is situate in the parish of Burley-in-Wharfedale and containing in the whole six hundred acres or thereabouts and delineated and coloured pink on the

A.D. 1916. plan hereunto annexed and also of certain lands forming part of a farm known as Gaping Goose or Intake Gate Farm adjoining the first-mentioned piece or parcel of land on the east side thereof and containing sixty acres or thereabouts situate in the parish of Hawksworth such part of the said farm being delineated and coloured blue on the said plan hereunto annexed:

And whereas the said Black Beck and the said Middle Beck flow through the said Burley Moor and the said Hawksworth Moor and the water flowing or percolating over or through the piece or parcel of land coloured red on the said plan to some extent finds its way into the said becks above the works of the Company:

And whereas the water flowing or percolating over or through the said pieces or parcels of land coloured blue on the said plan to some limited extent is believed to now find its way into the Jum Beck and Gill Beck below the works of the Company:

And whereas the grantor has agreed for the consideration hereinafter expressed to grant to the Company (subject to the reservation hereinafter specified) all the water in or upon or flowing or percolating over or through the said pieces or parcels of land and such other easements and rights as are hereinafter described and to enter into such covenants as are hereinafter mentioned:

Now it is hereby agreed and declared as follows:—

1. The grantor shall sell and grant to the Company and their assigns owners for the time being of the lands and works acquired and constructed by the Company under the Act of 1889 Firstly All the rights of the grantor of and in all water in or upon any part of the said pieces or parcels of land coloured red and blue upon the said plan hereunto annexed or flowing or percolating over or through the same whether in a defined channel or not and whether above ground or underground Secondly Full right and liberty (subject to the restrictions hereinafter contained) at any time or times to enter upon the said pieces or parcels of land or any part thereof and thereon to make and maintain cleanse and repair such channels drains grips waterways and watercourses (which channels drains grips waterways and watercourses shall be made and maintained either "V" or oval shaped and shall be reasonable in number width and depth and where the same cross accommodation roadways upon the said lands shall be piped and the surface of such roadways restored) as they may consider necessary or convenient for collecting or diverting any water in or upon the said pieces or parcels of land or flowing or percolating over or through the same and for leading such water into the Black Beck or Middle Beck or the works of the Company constructed under the Act of 1889 or to be constructed under the Act or Provisional Order to be obtained by the Company as hereinafter provided or any of

them And thirdly Full right and liberty at any time or times to enter upon the said pieces or parcels of land or any part thereof and therefrom to remove any animal matter or thing which may be in or upon the same contrary to the covenant on the part of the grantor hereinafter referred to Provided that before making any new channel drain grip waterway or watercourse upon any part of the said pieces or parcels of land the Company shall give fourteen days' previous notice in writing to the grantor his heirs or assigns and in the exercise of the rights granted to them the Company shall take all reasonable precautions to prevent any injury or prejudice to the use of the said pieces or parcels of land for sporting purposes and shall not except in case of urgent necessity make any such entry during the period of the nesting of grouse or between the eighth August and thirtieth September in any year or for three days before any day upon which the grantor or his successors shall have given to the Company notice of his or their intention or of the intention of his or their licencees to shoot upon the said lands or during the days when he and they shall pursuant to any such notice be actually shooting thereon And provided also that the owner or owners occupier or occupiers for the time being of the said pieces or parcels of land coloured blue shall notwithstanding the grant of the rights hereinbefore mentioned be at liberty at all times to divert conduct take and use such of the water in or upon or flowing or percolating over or through the said pieces or parcels of land as he or they may reasonably require for domestic purposes or for the purpose of watering cattle at the Gaping Goose or Intake Gate farmhouse and the stables cowsheds and outbuildings connected therewith and in and upon any part of the said farm he and they shall also be entitled to maintain the watering-troughs upon the said lands coloured blue upon the said plan and to have an adequate supply of water thereto The said grant shall be made to the Company and their assigns in fee simple.

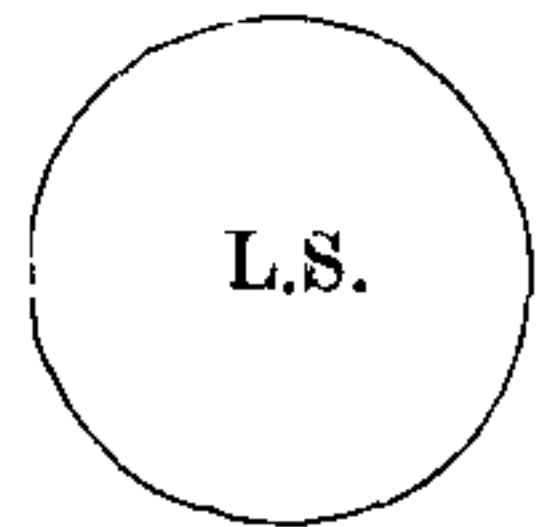
2. The said grant shall be made by deed and by such deed the grantor shall (subject as to so much of the said land coloured pink on the plan as forms part of Burley Moor to the right of the freeholders of common thereon) for himself his heirs and assigns owner or owners for the time being of the said pieces or parcels of land coloured red and blue on the said plan and so as to bind the said pieces or parcels of land into whosoever hands the same may come covenant with the Company and their assigns owners for the time being of the said lands and works acquired and constructed by the Company under the powers of the said Act of 1889 that the grantor his heirs and assigns owner or owners as aforesaid and their lessees and tenants shall not nor will at any time thereafter place or cause or permit to be placed or to be in or upon any part of the said pieces or parcels of land any horses cattle sheep pigs geese or fowls (not being wild fowl) or any manure

A.D. 1916. shall be reserved to the grantor his heirs and assigns full and free rights of sporting over the said land and all rights incidental thereto.

11. This agreement is conditional upon the approval thereof by the shareholders of the Company in general meeting on or before the thirty-first day of December one thousand nine hundred and fifteen.

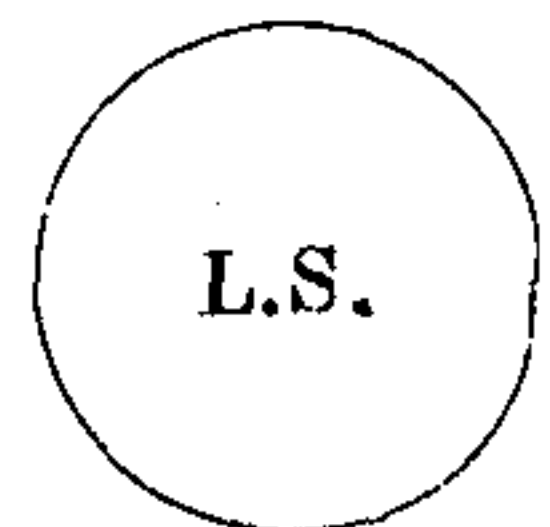
In witness whereof the grantor has hereunto set his hand and seal and the Company have caused their common seal to be hereunto affixed the day and year first before written.

Signed sealed and delivered by
the said Charles Ernest } C. E. CHARLESWORTH.
Charlesworth in the presence
of



HENRY CHALKER Solicitor
Wakefield.

The common seal of the Yeadon
Waterworks Company was
hereunto affixed in the
presence of



GEORGE H. TEALE.
ANDREW HARRISON.
WILLIAM PARSONS.

PART II.

DESCRIPTION OF LANDS DELINEATED ON PLAN REFERRED TO IN THE FOREGOING AGREEMENT.

Firstly The lands coloured pink or red on the said plan—Lands comprising 600 acres or thereabouts forming part of Hawksworth Moor and Burley Moor and being the drainage area of the Middle Beck and the Black Beck above the points where such becks are respectively intercepted by the Aqueduct No. 1 authorised by the Act of 1889 which lands are coloured green on the Ordnance map on the scale of six inches to a mile deposited in connexion with the application for the foregoing Act at the Office of the Clerk of the Parliaments.

Secondly Lands coloured blue on the said plan—Lands comprising 60 acres or thereabouts forming part of Gaping Goose Farm in the parish of Hawksworth adjoining the lands firstly above described and being coloured blue and hatched on the Ordnance map above referred to.

THE SECOND SCHEDULE.

A.D. 1916.

PART I.

AN AGREEMENT made the third day of January one thousand nine hundred and sixteen between CHARLES ERNEST CHARLES-WORTH of Conyngham Hall Knaresborough in the West Riding of the county of York Esquire (hereinafter called "the grantor") of the one part and YEADON WATERWORKS COMPANY (hereinafter called "the Company") of the other part and supplemental to an agreement dated the eleventh day of August one thousand nine hundred and fifteen and made between the grantor of the one part and the Company of the other part and hereinafter called "the principal agreement."

WHEREAS by the principal agreement the grantor has (inter alia) agreed subject to certain reservations to grant unto the Company certain rights and easements in respect of the piece or parcel of land coloured blue upon the plan thereunto annexed and to enter into certain covenants and agreements in relation thereto:

And whereas the Company are desirous of having a grant of similar rights and easements over the piece or parcel of land coloured blue upon the plan hereunto annexed and also the benefit of similar covenants and agreements on the part of the grantor in connexion therewith:

And whereas the grantor is willing for the consideration hereinafter expressed to grant to the Company similar rights and easements over the said piece or parcel of land coloured blue upon the plan annexed hereto to those granted by the principal agreement over the piece or parcel of land coloured blue upon the plan annexed thereto and to enter into similar covenants and agreements but subject to similar reservations:

And whereas the principal agreement has already been approved by the shareholders of the Company in general meeting:

Now it is hereby agreed between the parties hereto as follows:—

1. The grantor shall sell and grant to the Company and their assigns rights and easements over the piece or parcel of land coloured blue on the plan annexed hereto similar to those agreed to be granted by the vendor by the principal agreement over the piece or parcel of land coloured blue on the plan annexed thereto subject to similar reservations to those contained in the principal agreement and each party

A.D. 1916. shall enter into covenants and agreements similar to those agreed to be entered into or necessary by reason of the principal agreement with reference to the said piece of land.

2. The principal agreement shall be read and construed as if the piece or parcel of land coloured blue upon the plan annexed thereto had added to it the piece or parcel of land coloured blue upon the plan hereunto annexed.

3. The consideration for the grant covenants and agreements to be made and entered into by the grantor in pursuance of this agreement shall be the sum of ninety pounds and the principal agreement shall be read and construed as if the sum of two thousand five hundred and ninety pounds were inserted therein as the consideration for the grant covenants and agreements thereby agreed to be made and entered into instead of the sum of two thousand five hundred pounds therein mentioned.

4. If this agreement shall not be confirmed by Act of Parliament or by confirmation of Provisional Order or shall become void in any other manner the costs charges and expenses of the grantor of this agreement and incidental thereto amounting to five pounds five shillings shall be paid by the Company.

5. This agreement is conditional upon the approval thereof by the shareholders of the Company in general meeting on or before the thirty-first day of March one thousand nine hundred and sixteen.

In witness whereof the grantor has hereunto set his hand and seal and the Company have caused their common seal to be hereunto affixed the day and year first before written.

Signed and sealed by the said
Charles Ernest Charlesworth } C. E. CHARLESWORTH.
in the presence of

HENRY CHALKER Solicitor
Wakefield.

The common seal of the Yeadon
Waterworks Company was
hereunto affixed in the
presence of

GEORGE H. TEALE.
ANDREW HARRISON.
WILLIAM PARSONS.

L.S.

L.S.

PART II.

A.D. 1916.

DESCRIPTION OF LANDS DELINEATED AND COLOURED BLUE
ON PLAN REFERRED TO IN THE FOREGOING AGREEMENT.

Lands comprising ten acres or thereabouts in the parish of Hawksworth and being so much of the lands coloured blue and unhatched on the Ordnance map on the scale of 6 inches to a mile deposited in connexion with the application for the foregoing Act at the Office of the Clerk of the Parliaments as is situate on the north side of Reva Road.

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